

22STCV12240 22STCV12240

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 22STCV12240 Hearing Date: September 10, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

10, 2026 TRIAL

DATE: Vacated

CASE: Monique Bravo v. Optumcare

Management, LLC

CASE NO.: 22STCV12240

PLAINTIFF'S

MOTION FOR APPROVAL OF PRIVATE

ATTORNEYS

GENERAL ACT ("PAGA") SETTLEMENT

MOVING PARTY: Plaintiff

Monique Bravo

RESPONDING PARTY: No opposition

I. INTRODUCTION

On April 11,

2022, Plaintiff, Monique Bravo, commenced this PAGA action.

On June 15, 2026, Plaintiff filed the First Amended Complaint (FAC) in her individual capacity and on behalf of all others similarly situated, against Defendants, Optumcare Management, LLC and Optum Care, Inc., for civil penalties under PAGA.

The parties

have agreed on the terms of a settlement.

Under the proposed settlement, Defendants will pay a Gross Settlement Amount of \$630,000.00. Of that amount, \$220,500.00 will be paid as attorney fees, \$16,936.46 will be paid for reimbursement of litigation expenses, and \$7,140.75 will be paid to a settlement administrator, leaving a Net Settlement Amount of \$385,422.79. (Khoury Decl., Ex. 1.) From the Net Settlement Amount, \$289,067.09 will be paid to the Labor and Workforce Development Agency ("LWDA") and 96,355.70 will be paid to the aggrieved employees.

II. DISCUSSION

A court must review and approve any penalties sought as part of a proposed settlement agreement pursuant to Labor Code section 2699. (Lab. Code § 2699, subd. (l).) "[C]ivil penalties recovered by aggrieved employees shall be distributed as follows: 75 percent to the Labor and Workforce Development Agency for enforcement of labor laws and education of employers and employees about their rights and responsibilities under this code, to be continuously appropriated to supplement and not supplant the funding to the agency for those purposes; and 25 percent to the aggrieved employees." (Lab. Code, § 2699, subd. (i).)

A. Plaintiff

Has Provided Notice of the Settlement to LWDA.

A proposed PAGA settlement must be submitted to LWDA at the same time that it is submitted to the court for review and approval. (Lab. Code § 2699, subd. (l)(2).) Plaintiff's counsel attaches proof that the settlement was submitted to the LWDA on July 2, 2026—the same day this motion was filed. (Khoury Decl., Ex. 7.)

The court finds that this requirement is satisfied.

B. The

Settlement is Entitled to a Presumption of Fairness.

A presumption of fairness for a settlement agreement exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. (*Dunk v. Ford Motor Co.*, (1996) 48 Cal.App.4th 1794, 1802.) The final factor does not apply to PAGA. (See *Arias v. Superior Court* (2009) 46 Cal.4th 969, 984 [representative actions under PAGA do not violate the due process rights of "nonparty aggrieved employees who are not given notice of, and an opportunity to be heard"].)

On January 26, 2026, the parties attended a full-day mediation. Although the parties did not reach a settlement at the mediation, the parties ultimately accepted the mediator's proposal. (Khoury Decl., ¶ 18.) The settlement was therefore reached through arm's-length bargaining.

The parties engaged in multiple rounds of written discovery and document production. Plaintiff sat for an all-day deposition and took two PMQ depositions. (Khoury Decl., ¶ 17.) Accordingly, there was sufficient investigation to allow counsel to act intelligently.

Plaintiff's counsel has experience in litigating and wage and hour class actions. (Khoury Decl., ¶¶ 4-7.)

The court finds that the settlement is entitled to a presumption of fairness.

C. The

Release is Permissible.

If the Court approves the PAGA settlement, and "[u]pon funding of the Gross Settlement Amount, Plaintiff, on behalf of herself, the State of California, and the Aggrieved Employees fully and finally release and forever discharge the Released Parties from any and all Released PAGA Claims during the PAGA Period. As a result of this release, Plaintiff, the State of California, and the Aggrieved Employees will not be able to bring a claim or seek civil penalties

based on the Released PAGA Claims that took place during the PAGA Period.”
This release is permissible.

D. The Attorney
Fees and Costs Are Reasonable.

A prevailing employee is entitled to an award of reasonable attorney fees and costs incurred in the action. (Lab. Code, § 2699, subd. (g)(1).) Plaintiff’s counsel will receive \$220,500.00 in attorney fees (35% of the PAGA Settlement Amount) and \$16, 936.46 in costs and expenses. (Khoury Decl., Ex. 1.)

The court finds that the attorney fees and costs are reasonable.

III. CONCLUSION

The unopposed Motion for Approval of PAGA Settlement is GRANTED.

Order to
Show Cause Re: PAGA Settlement Administrative Report is set for 02/10/27 at 8:30 AM in Department 407 at Stanley Mosk Courthouse.

Moving party to give notice.

Dated: September 10,
2026

Brock T. Hammond

Judge of the Superior Court